

Sanjay Agarwal v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 17 January 2020 · Writ - C No. 1461 of 2020 · **Writ disposed with a direction to decide the pending clause 4.38 application within four weeks; coercive action stayed for five weeks.**

HEADNOTE

Without quashing the recovery certificate or deciding entitlement to permanent disconnection, the Division Bench directed the Executive Engineer, Electricity Distribution Division-II, Hathras, to pass an appropriate order on the petitioner's pending clause 4.38 application within four weeks of receiving a certified copy, and restrained coercive action for five weeks.

FACTUAL SUMMARY

Sanjay Agarwal, a consumer of Dakshinanchal Vidyut Vitran Nigam Limited, sought certiorari to quash a recovery certificate dated 3 October 2018 issued by the Executive Engineer and mandamus for a permanent disconnection certificate for connection no. 2013/29. His application under clause 4.38 of the U.P. Electricity Supply Code, 2005 for permanent disconnection was still pending, and the recovery certificate had issued in the meantime. Counsel for the petitioner and the electricity department were heard.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.38

pending application for permanent disconnection

HOLDING

Where a consumer's clause 4.38 application for permanent disconnection remains undecided and a recovery certificate has issued, the High Court may, without quashing the recovery or granting disconnection, direct the Executive Engineer to pass an appropriate order on that application within a fixed time and stay coercive action in the interim. ¶ 1

PRINCIPLE TAGS

permanent-disconnection-procedure-governed-by-clause-4.38 The Court treated the pending consumer request for permanent disconnection as a clause 4.38 application to be decided by the Executive Engineer, without itself granting or refusing disconnection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 03.10.2018

Certiorari to quash was sought but neither granted nor refused on merits; only a five-week stay of coercive action was ordered. ¶ 1

NOT DECIDED — ENTITLEMENT TO PERMANENT DISCONNECTION UNDER CLAUSE 4.38

The Court directed the Executive Engineer to pass an appropriate order and did not decide whether disconnection was due. ¶ 1